

THE GYM

MASTER MEMBERSHIP AGREEMENT & LIABILITY WAIVER

This Master Membership Agreement & Liability Waiver ("Agreement") is entered into between THE GYM ("THE GYM," "we," "our," or "us") and the undersigned Member. By signing this Agreement, Member acknowledges that they have carefully read, understand, and voluntarily agree to all terms contained herein.

1. ASSUMPTION OF RISK

Member understands that participation in physical exercise, fitness activities, personal training, group fitness classes, use of free weights, resistance machines, cardio equipment, functional training equipment, stretching areas, recovery equipment, tanning beds, sauna facilities, and all other amenities involves inherent risks.

These risks include, but are not limited to:

- Muscle strains and tears
- Sprains
- Broken bones
- Heart attack
- Stroke
- Heat exhaustion
- Dehydration
- Falls
- Slips
- Equipment malfunction
- Permanent disability
- Death

Member voluntarily accepts and assumes all risks associated with participation in any activity at THE GYM.

2. MEDICAL ACKNOWLEDGMENT

Member certifies that they are physically able to participate in exercise and have consulted a physician if necessary.

Member agrees to immediately discontinue exercise and seek medical attention if they experience: chest pain, dizziness, shortness of breath, loss of consciousness, severe pain, or any unusual physical symptoms.

THE GYM does not provide medical advice and is not responsible for determining Member's fitness for participation.

3. RELEASE OF LIABILITY

To the fullest extent permitted by Texas law, Member releases, waives, and forever discharges THE GYM, its owners, officers, employees, contractors, trainers, volunteers, affiliates, successors, assigns, and agents from any and all liability, claims, demands, actions, causes of action, damages, costs, expenses, attorney's fees, losses, or injuries arising from or relating to: use of the facility, exercise activities, personal training, group fitness classes, equipment use, tanning bed use, sauna use, nutritional consultations, purchase or consumption of retail products, or accidents occurring on the premises, except to the extent caused by gross negligence or willful misconduct where such limitation is prohibited by law.

4. KIDS ROOM ACKNOWLEDGMENT AND RELEASE

THE GYM may provide a designated kids room containing amenities such as a television, seating, and age-appropriate activities solely as a convenience for members and their families. No childcare, babysitting, supervision, or monitoring services are provided.

Member understands and agrees that parents or legal guardians remain solely responsible for the care, supervision, safety, and conduct of their children at all times while on THE GYM premises, including while in the kids room. Children may not be left unattended.

Member voluntarily assumes all risks associated with their child's presence in and use of the kids room and releases and holds harmless THE GYM, its owners, employees, contractors, and affiliates from any claims, injuries, damages, or losses arising from a child's use of the kids room, except to the extent caused by gross negligence or willful misconduct where such limitation is prohibited by law.

Failure to properly supervise a child or to comply with posted kids room rules may result in suspension or termination of membership privileges.

5. TWENTY-FOUR (24) HOUR FACILITY ACCESS

THE GYM operates as a 24-hour access facility. Member understands that portions of each day may be unstaffed. Member accepts all risks associated with using the facility when staff members are not present. Member agrees to exercise additional caution during unstaffed hours.

6. KEY FOB / ACCESS CREDENTIALS

Member is responsible for all activity occurring under their access credentials. Member agrees:

- Not to share, loan, duplicate, or transfer their key fob or access credentials.
- Not to allow non-members to enter using their credentials.
- Not to permit "tailgating" or unauthorized entry.

Violation of these policies may result in immediate termination of membership without refund. Lost access devices may incur a replacement fee.

7. EQUIPMENT USE

Member agrees to: use equipment only as intended, return weights after use, wipe down equipment after use, report damaged equipment immediately, and not use equipment known to be damaged. THE GYM reserves the right to remove equipment from service at any time.

8. PERSONAL PROPERTY

THE GYM is not responsible for lost, stolen, or damaged personal property, including: wallets, phones, jewelry, clothing, keys, vehicles, and any personal belongings brought onto the premises.

9. SECURITY CAMERAS

Member acknowledges that video surveillance is in use throughout portions of the facility for safety, security, and operational purposes. Member consents to being recorded while on the premises.

10. TANNING BED ACKNOWLEDGMENT

Member understands tanning involves risks including: skin burns, premature skin aging, eye injury, allergic reactions, and increased risk of skin cancer. Member agrees:

- To wear approved eye protection.
- To follow all posted exposure limits.
- To disclose medications or conditions increasing UV sensitivity.
- To use the tanning bed no more than one (1) time during any twenty-four (24) hour period.
- Not to attempt to bypass this policy by using another person's membership or otherwise circumventing THE GYM's tanning policies.

Violation may result in permanent loss of tanning privileges without refund. Member voluntarily assumes all risks associated with tanning.

11. SAUNA ACKNOWLEDGMENT

Member understands sauna use may result in: heat exhaustion, burns, dehydration, dizziness, low blood pressure, and heart complications. Member agrees to remain hydrated, not to use the sauna while impaired by alcohol or drugs, to exit immediately if feeling ill, and to consult a physician if pregnant or suffering from cardiovascular disease or other medical conditions. Member voluntarily assumes all risks associated with sauna use.

12. RETAIL PRODUCTS, SUPPLEMENTS & PREPARED MEALS

THE GYM may offer for sale protein powders, protein bars, hydration products, vitamins, nutritional supplements, energy drinks, prepared meals, snacks, and other retail items.

Member understands that THE GYM is not a physician, pharmacist, or registered dietitian. Products have not been individually evaluated for Member's personal medical condition. Member is solely responsible for reviewing ingredient labels as products may contain allergens. Member should consult a healthcare provider before consuming supplements or beginning any nutrition program.

Member assumes all responsibility for purchasing and consuming any retail products and releases THE GYM from liability for allergic reactions, side effects, illnesses, injuries, or other adverse outcomes arising from the purchase or consumption of such products, except where prohibited by law. All retail sales are final unless otherwise required by law.

13. PERSONAL TRAINING

Member understands that personal training involves physical exertion and carries inherent risks. Member agrees to promptly inform their trainer of any pain, injury, dizziness, discomfort, or medical condition. No guarantee of specific results is made.

14. NUTRITION COACHING

Any nutrition coaching or recommendations provided by THE GYM are for general educational purposes only. Member acknowledges that nutritional guidance is not medical advice and should not replace consultation with a physician or registered dietitian when appropriate.

15. EMERGENCY MEDICAL CARE

If THE GYM believes emergency medical treatment is necessary, Member authorizes staff to contact emergency medical services. Member accepts full financial responsibility for all emergency medical expenses incurred.

16. SMS / TEXT MESSAGING CONSENT & TERMS

By providing a telephone number and signing this Agreement, Member consents to receive transactional, operational, administrative, and promotional text (SMS) messages from THE GYM. These messages may include, but are not limited to: account updates, billing notifications, facility closures, class reminders, emergency alerts, and promotional offers.

The Gym Messaging Terms and Conditions:

1. The messaging program consists of general conversational messaging to answer questions and provide support to customers.
2. You can cancel the SMS service at any time. Just text 'STOP' to the phone number from which you received messages. After you send the SMS message 'STOP' to us, we will send you an SMS message to confirm that you have been unsubscribed. After this, you will no longer receive SMS messages from us. If you want to join again, just sign up as you did the first time and we will start sending SMS messages to you again.
3. If you are experiencing issues with the messaging program you can reply with the keyword HELP for more assistance, or you can get help directly at thegymsfc.tx@gmail.com.
4. Carriers are not liable for delayed or undelivered messages.
5. As always, message and data rates may apply for any messages sent to you from us and to us from you. Message frequency will vary based on communication needs. If you have any questions about your text plan or data plan, it is best to contact your wireless provider.
6. If you have any questions regarding privacy, please read our privacy policy contained in the rest of this document/page.

17. PHOTOGRAPHY & VIDEO RELEASE

Member grants THE GYM permission to photograph or record video within the facility for marketing, advertising, educational, or promotional purposes. Member may revoke this permission at any time by submitting a written request to THE GYM. Revocation will apply prospectively and will not affect materials already produced or published.

18. MEMBER CONDUCT

THE GYM reserves the right to suspend or terminate membership without refund for: harassment, violence, threatening behavior, theft, vandalism, unauthorized guests, misuse of equipment, unsafe conduct, or violation of gym policies.

19. INDEMNIFICATION

To the fullest extent permitted by law, Member agrees to indemnify, defend, and hold harmless THE GYM, its owners, employees, contractors, affiliates, successors, and assigns from any claims, damages, liabilities, costs, or expenses (including reasonable attorney's fees) arising out of Member's conduct, misuse of the facility, violation of this Agreement, or negligent or intentional acts.

20. GOVERNING LAW

This Agreement shall be governed by and interpreted under the laws of the State of Texas. Any dispute arising under this Agreement shall be brought in a court of competent jurisdiction located in Grayson County, Texas, unless otherwise required by law.

21. SEVERABILITY

If any provision of this Agreement is determined to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

22. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between Member and THE GYM concerning membership, facility use, and liability.

MEMBER ACKNOWLEDGMENT & SIGNATURE

- I have carefully read this entire Agreement.
- I understand the risks associated with participation and that I am releasing certain legal rights.
- I voluntarily agree to all terms and conditions, including SMS messaging consent and terms, and have had the opportunity to ask questions before signing.

MEMBER NAME (PRINTED)

DATE

MEMBER SIGNATURE

MOBILE PHONE

(If Member is under 18 years old)

PARENT / LEGAL GUARDIAN NAME (PRINTED)

DATE

PARENT / LEGAL GUARDIAN SIGNATURE